

EB-2 NATIONAL INTEREST WAIVER — DRAFT PETITION LETTER

Form I-140 supporting statement (Matter of Dhanasar framework) — draft for attorney review

Petitioner: Tom Ugbodaga, Shareholder & CEO, BETONIQ WEST LTD

LinkedIn: [linkedin.com/in/tom-deggs-ugbodaga-2306692bb](https://www.linkedin.com/in/tom-deggs-ugbodaga-2306692bb)

Contact: zeropointfeild_nonwnt@zeropay.site | +234 706 525 2117

Company registration: RC 1496603 | Abuja, FCT, Nigeria

Filing type: Form I-140, Employment-Based Second Preference (EB-2), National Interest Waiver

Date: August 26, 2026 (draft petition letter — for attorney review before filing)

INTRODUCTION

This letter is submitted in support of Tom Ugbodaga's self-petition for classification as an employment-based, second-preference immigrant (EB-2) with a waiver of the job offer requirement under the National Interest Waiver (NIW) provision, pursuant to the three-part framework established in Matter of Dhanasar (26 I&N Dec. 884, AAO 2016).

Mr. Ugbodaga is the Shareholder & CEO of BETONIQ WEST LTD (RC 1496603, Nigeria) and the inventor of ZerôPâ■ Money, a patent-pending offline-first payment protocol that removes connectivity dependency — the single greatest structural barrier to financial inclusion for the 1.4 billion unbanked people worldwide, 38 million of them in Nigeria.

PRONG 1 — SUBSTANTIAL MERIT AND NATIONAL IMPORTANCE

Mr. Ugbodaga's proposed endeavor — commercializing and scaling ZerôPâ■ Money's offline payment infrastructure within the United States and internationally — has substantial merit in the fields of financial technology, cybersecurity, and economic development.

The endeavor has national importance because connectivity failures affect the United States directly: rural and underserved regions, disaster-response corridors (hurricanes, wildfires, grid outages), and military/emergency-services logistics all depend on payment continuity when networks fail. ZerôPâ■ Money's PUF/ECC-secured, offline-capable protocol directly addresses U.S. domestic resilience needs, not only overseas markets — its value proposition is explicitly universal, not regionally confined.

Evidence to attach: TLA+ formal verification report (437 states, 0 violations); signed Paystack merchant agreement (July 14, 2026); patent-pending invention disclosure (April 2026); technical architecture summary.

PRONG 2 — WELL POSITIONED TO ADVANCE THE PROPOSED ENDEAVOR

Mr. Ugbodaga holds an MSc in Computer Systems Security (University of Gloucestershire, England, 2011), with a dissertation on NFC Contactless Technology for Financial Payments (Merit Class) — the exact technical foundation of the innovation he is now commercializing. This represents a 15-year research commercialisation arc from academic specialization to applied, field-tested infrastructure.

As founder and CEO, Mr. Ugbodaga has independently designed the full four-layer cryptographic architecture, secured a signed commercial settlement partnership (Paystack), and progressed the innovation through formal protocol verification — demonstrating direct technical and entrepreneurial capacity to execute the endeavor without reliance on third-party sponsorship.

LinkedIn: [linkedin.com/in/tom-deggs-ugbodaga-2306692bb](https://www.linkedin.com/in/tom-deggs-ugbodaga-2306692bb)

PRONG 3 — BENEFIT OF WAIVING THE JOB OFFER/LABOR CERTIFICATION REQUIREMENT

On balance, it would benefit the United States to waive the job offer and labor certification requirements in this case. The traditional labor market process is not well suited to evaluate a novel, founder-led deep-tech infrastructure project of this kind, where the petitioner is the sole originator of the underlying intellectual property and there is no equivalent domestic labor pool to test against.

Requiring a specific job offer would impose an unnecessary barrier to an endeavor whose benefit — resilient, connectivity-independent payment infrastructure — serves the national interest more directly through direct U.S. market entry and product development than through standard employment sponsorship.

CONCLUSION

For the foregoing reasons, Mr. Ugbodaga respectfully requests that USCIS grant a National Interest Waiver in connection with his EB-2 immigrant petition.

This is a draft petition letter for internal review. Immigration counsel should review before filing Form I-140. Supporting evidence package (CV, degree certificate, TLA+ report, Paystack agreement, patent disclosure, and any independent letters of support) should be compiled separately.

Contact: zeropointfeild_nonwnt@zeropay.site | +234 706 525 2117 | LinkedIn: [linkedin.com/in/tom-deggs-ugbodaga-2306692bb](https://www.linkedin.com/in/tom-deggs-ugbodaga-2306692bb)
BETONIQ WEST LTD | RC 1496603 | Abuja, FCT, Nigeria
CONFIDENTIAL — DRAFT FOR ATTORNEY REVIEW